

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 14, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV00202

MARTINEZ v. NOVIN, et al.

DEFENDANTS’ MOTIONS TO BE RELIEVED

The parties shall appear and answer the court’s questions related to if Novin Properties LLC has replacement counsel.

No. 25CV02356

DE LA CONCHA v. FAULTLINE BREWING CO., INC.

PLAINTIFF’S MOTIONS TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND REQUESTS FOR ADMISSIONS (SETS ONE)

DEFENDANT’S MOTION FOR PROTECTIVE ORDER

Defendant’s motion for protective order is granted in part and plaintiff’s motions to compel are granted in part, as detailed below.

This is a class action related to alleged violations of various Labor Codes regarding wages, rest and meal periods, overtime, wage statements, and unreimbursed business expenses. The class has yet to be certified.

Precertification class discovery is not a matter of right. (*Starbucks Corp. v. Superior Court* (2011) 194 Cal.App.4th 820, 825). “[T]rial courts must apply a balancing test and weigh

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the actual or potential abuse of the class action procedure against the potential benefits that might be gained.” (*Ibid.*) “The decision to permit or not permit precertification discovery in a class action is committed to the wide discretion of the trial court.” (*CVS Pharmacy, Inc. v. Superior Court* (2015) 241 Cal.App.4th 300, 307.) The court may limit pre-certification discovery to class identification issues and defer merits-related discovery until after class certification. For example, discovery seeking the putative class members’ contact information is permitted, as is discovery related to numerosity, typicality and commonality. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 544; *Barthold v. Glendale Federal Bank* (2000) 81 Cal.App.4th 816, 836.)

The majority of plaintiffs’ discovery requests are overly broad and seek information related to all of defendants’ California employees, not just those in non-exempt positions. (See Requests for Admissions, nos. 3, 4, 6, 8, 9, 14-21; Form Interrogatory no. 17.1; Requests for Production, nos. 1, 3-18, 27, 33, 38, 39, 41, 42; and Special Interrogatories, nos. 3, 6, 7, 8, 10, 11, 12, 15, 17, 19, 21, 23, 27, 29, 30.) The court agrees that a protective order limiting the disclosure of that information is warranted, and that discovery as to potential Labor Code violations regarding non-exempt employees is more appropriate following class certification.

Some further responses are warranted, as detailed here:

Special Interrogatories, nos. 13-14, 16, 18, 20, 22, 24, 26, 28, 34, and 35 seek information related to plaintiff’s compensation and defendant’s policies. Defendant’s response that it elected to produce copies of responsive records instead of a data compilation is permitted. Defendant shall provide the supplemental response it promised no later than October 16, 2026.

Request for Production, nos. 1, 27, 33, 38, and 41 seek records directly related to plaintiff’s employment and are appropriate for production. Defendant shall produce time and compensation records related to plaintiff no later than October 16, 2026.